and Rajguru, were not spared. The rule of law, the much-vaunted edifice of the English common law eulogized so heavily by its judges down the ages, was a chimera. It was a charade.

The violence of the special tribunal was not just structural. It was also actual. If there was any doubt left that the trial was taking place outside the established canons of the rule of law, it was dispelled by the vicious bouts and acts of actual violence meted out to the accused by police officers both in the courtroom and outside it. It is an illustration of what Radhika Singha has described as the 'racially structured legal jurisdiction' in colonial India.[4] As she points out, from the time of the East India Company, 'courts in India were conspicuously lacking in any of the forms which dignified the proceedings of English courts'. In the circumstances, 'race shaped the way in which judicial and magisterial authority were communicated'. The result was that '[t]he British magistrate or judge occupied his office as a white ruler'.[5] The 'racial cast of magisterial authority'[6] permeated all legal proceedings. And Bhagat Singh fell victim to such a system.

The irony for Bhagat Singh is that he could have lived. After the assassination of J.P. Saunders on 17 December 1928, Bhagat Singh had successfully escaped the scene of the crime. The police had no leads on him. He would not have been identified. However, he invited arrest by himself plastering notices of the killing across the city of Lahore, signed off in his own handwriting, and claiming that by this act the death of Lala Lajpat Rai had been avenged. He would not have been caught had it not been for the fact that, not only did he then go on to take part in the Delhi Assembly Bomb Case on 8 April 1929, but he also willingly chose to give himself up so that at the trial he could denounce the government by making an open speech before the judge. The trial over the Delhi Assembly Bomb Case began before Magistrate R.B. Pool on 7 May 1929, but it was on 6 June 1929 that he made his historic courtroom statement. Although the statement was suppressed, it leaked into the public domain quite quickly, so that when on 12 June 1929 the Delhi sessions judge, Justice Leonard Middleton, gave his judgment sentencing both Bhagat Singh and B.K. Dutt,